

CONDITIONAL ACCEPTANCE OF VESSEL

Pursuant to the Purchase and Sale Agreement dated 17 March 2025 ("Purchase Agreement") between Benito Irastorza and/or Assigns ("Buyer") and the owner of record, _____ ("Seller") providing for purchase and sale of the Vessel, "ABOUT TIME" - one 2020 88' Sanlorenzo "Sanlorenzo SX88" motor yacht bearing Official Number 749670 and Hull identification Number SLZ00029J920, along with its tender, personal watercraft and inventory ("Vessel"), Buyer hereby "accepts" the Vessel in accordance with the Purchase Agreement subject to the following:

1. Seller's Documents: Seller, at or before Closing, shall deliver to Buyer those documents listed in Exhibit 2 hereto in a form acceptable to Buyer's attorney. The documentation that the Seller is to provide is a condition precedent to the Buyer's obligation to complete the purchase of the Vessel. The Seller shall deliver to the Buyer copies of the documents listed in Exhibit 2 to the Buyer's attorney by no later than the 30th day of April 2025.
2. Inventory: All items on the listing broker's listing and the report of the prepurchase survey report are to be aboard the Vessel at Closing.
3. Closing and Delivery: The closing of the transaction and physical delivery of the Vessel as contemplated under the Purchase Agreement shall occur on or before the 8th day of May 2025 ("Closing Date"). If, due to adverse sea conditions, Seller is unable to deliver the Vessel at the location specified below on or before such date, the Closing Date shall be extended to the first business day thereafter that the Vessel can make safe passage. Likewise, if the Buyer is unable to obtain insurance cover for the Vessel on such date, the Closing Date shall be extended to the first business day thereafter that such insurance coverage can be obtained.
 - a. Closing Date:
 - i. Seller shall deliver title to, and possession of, the Vessel to Buyer in international waters or any other location mutually agreed to by the parties; and
 - ii. Representatives of Buyer and Seller shall execute a Protocol/Declaration of Delivery and Acceptance and
 - iii. Seller shall deliver to Buyer or Buyer's agent those documents necessary or appropriate to accomplish the transfer contemplated by this Agreement; and
 - iv. Buyer shall pay the balance of the Purchase Price to Seller via wire transfer of cleared funds.
4. Risk of Loss: Title, ownership, and risk of loss of the Vessel shall pass from Seller to Buyer at, and upon, physical delivery of the Vessel on the Closing Date at the closing location.
5. No Sale or Use: Seller agrees not to offer to sell the Vessel or enter into any contract for the sale of the Vessel while the Purchase Agreement is in effect. From the date hereof through and including the Closing Date, Seller undertakes not to use the Vessel and accepts, acknowledges, and agrees that it shall refrain and be prohibited from conducting any further charters with the Vessel, including, without limitation, hosting any events or parties on board.

6. Purchase Price: The Seller has agreed to reduce the Purchase Price for survey deficiencies to USD\$ 4,600,000.00.
7. Repair/Maintenance Records: The Seller agrees to provide the Buyer with any and all repair, maintenance, and oil analysis records for the Vessel.
8. Engine Standards: The Seller warrants that the Vessel's engines have been maintained and adhere to the manufacturer's performance standards.
9. Extended Warranty: The Seller agrees to execute any and all warranty cards and/or documents transferring any and all applicable extended warranties to the Buyer.
10. Seller's Certification Vessel's Condition and Status while in Current Seller's Ownership and Possession: –

- | | | | | |
|--|-------|-----|-------|----|
| a. Is there a mortgage on the Vessel? | _____ | Yes | _____ | No |
| b. Are there any liens against the Vessel? | _____ | Yes | _____ | No |
| c. Has the Vessel ever run aground? | _____ | Yes | _____ | No |
| d. Has the Vessel suffered water intrusion? | _____ | Yes | _____ | No |
| e. Has the Vessel undergone warranty work? | _____ | Yes | _____ | No |
| f. Have the Vessel's engines been rebuilt? | _____ | Yes | _____ | No |
| g. Has the Vessel sustained any material or significant damage? | _____ | Yes | _____ | No |
| h. Has there ever been any damage to the Vessel's running gear? | _____ | Yes | _____ | No |
| i. Has the Vessel ever been involved in an insurance claim(s) or loss? | _____ | Yes | _____ | No |
| j. Has the Vessel ever been involved in a collision/allision? | _____ | Yes | _____ | No |
| k. Have there been any repetitive repairs to the Vessel? | _____ | Yes | _____ | No |
| l. Has there ever been a fire on board the Vessel? | _____ | Yes | _____ | No |
| m. Has the Vessel ever been struck by lightning? | _____ | Yes | _____ | No |

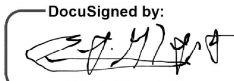
If the Seller has answered "Yes" to any of the aforementioned questions, please set forth in detail and describe with particularity the facts and circumstances regarding the loss or status. If the Seller has answered "Yes" to any of the aforementioned questions, the Buyer shall have the right to revoke this Conditional Acceptance of Vessel and the deposit shall be refunded to the Buyer, and the Purchase Agreement shall become null and void.

11. Taxes and Duty: Sales or use taxes, if applicable on the purchase of the Vessel, are the responsibility of the Buyer and will be collected by the selling Broker at the time of Closing. Duties, taxes, and/or fees on the Vessel of any state, county, city, regulatory, and/or taxing authority incurred prior to the Closing Date of this transaction shall be the responsibility of the Seller and shall be paid by the Closing Date.
12. Tender(s)/PWC/Toys: Seller warrants that any and all tender(s), personal watercraft, and toys included in the sale of the Vessel, shall be placed aboard the Vessel in good and working order on or before the Closing Date, and further that Seller will pass good and marketable title to the tender(s), personal watercraft and toys to the Buyer.
13. Spare Parts/Storage: Seller agrees that any and all spare parts for the Vessel shall be placed on the Vessel on or before the Closing Date.
14. Further Assurances. Each party hereto shall, from time to time after the delivery of this Conditional Acceptance at any other party's reasonable request and without further consideration, execute and deliver such further documents or instruments as may be reasonably required to more effectively evidence and confirm the transactions contemplated by the Agreement.
15. Warranty of Title: Seller agrees to provide an original Declaration of No Lien and Warranty of Title.
16. Assignment: Seller and Buyer agree to the assignment of the Purchase Agreement from Buyer to another individual or company.
17. Inconsistent Terms: The terms of this Conditional Acceptance of Vessel addendum shall govern over any inconsistent terms in the Purchase Agreement.
18. Ratification: Except as amended hereby, the Purchase Agreement is ratified and declared to be in full force and effect.
19. Entire Agreement: This Conditional Acceptance of Vessel constitutes the entire Agreement and understanding between the parties hereto with respect to the subject matter of this Conditional Acceptance of Vessel and supersedes all prior understandings and agreements, whether written or oral.
20. Counterparts: This Conditional Acceptance of Vessel addendum may be executed in several counterparts, each of which, when properly signed, will be respected as an original thereof. Seller and Buyer hereby agree that this Conditional Acceptance of Vessel addendum may be transmitted between the parties by facsimile machine or electronic mail in portable document format ("pdf"). The parties agree that facsimile signatures or pdf signatures constitute original signatures and that a faxed or pdf Conditional Acceptance of Vessel addendum containing the signatures (original, pdf, or faxed) of all the parties is binding on the parties. A signed copy of this Conditional Acceptance of Vessel sent by facsimile or other electronic methods shall be deemed original for all purposes.

IF THE ABOVE CONDITIONS ARE NOT ACCEPTED, THE BUYER SHALL BE DEEMED TO HAVE REJECTED THE VESSEL.

ACCEPTED BY BUYER

BUYER:

By: 
Name: Benito Irastorza

Dated: 4/24/2025

ACCEPTED BY SELLER

Seller hereby accepts Buyer's Conditional Acceptance of Vessel and agrees to satisfy the above-stated contingencies in order for the Buyer to unconditionally accept the Vessel, pay the balance of the Purchase Price, and otherwise close this transaction in accordance with the terms of said Purchase and Sale Agreement.

SELLER:

Name:
Title:

Dated: _____

EXHIBIT 1

List of Documents Required by the Buyer for Completion

List of Documents Required by the Buyer for Completion ("Vessel")

Not less than _____ (___) calendar days prior to the Closing Date, the Seller shall provide the Buyer with copies of the following documents required to be delivered at Closing for inspection by the Buyer (with the exception of the deletion certificate (or equivalent) noted in item 4 which shall be provided post-closing):

All documents noted herein shall be provided in the English language and shall be translated by a certified translator where required.

1. The original current, valid Certificate of Registry of the Vessel (original to be turned over on board the Vessel if an offshore closing);
2. Certificate of Encumbrance or Transcript of Register or Abstract of Title issued not earlier than forty-eight (48) hours before the Closing Date by the proper authorities of the Vessel's Registry confirming that the Vessel is solely owned by the Seller and is free from all registered charges, liens, or other encumbrances, any fees or costs incurred in the provision of the transcript will be for the Seller's account;
3. If requested, the Permission to Transfer or Original Deletion Certificate (or equivalent) from the Vessel's current registry within five (5) calendar days from the date of Closing, along with an original letter of Agreement to provide the original Permission to Transfer Deletion Certificate (or equivalent) within the required time frame at Closing, or such documentation as is required to otherwise transfer the Vessel's ownership to the Buyer within the Vessel's current registry at Closing. Notwithstanding anything contained herein to the contrary, duplicate originals of any letters from the Vessel's owner and registered agent, if applicable, confirming the requested deletion or deletion (if applicable), shall be provided to Buyer at Closing.
4. Three (3) original Bills of Sale, in such form as required by the Buyer's intended flag state, for the Vessel in favor of the Buyer executed by a duly authorized officer or director of Seller in form and manner acceptable to the Buyer's attorney and intended flag state, notarized (and if notarized outside of the United States – apostilled with the apostille translated into English by a certified translator); Such Bills of Sale may not be executed by an authorized signatory or under a power of attorney. Any notarial fees, costs, and duties incurred in the provision of the Bills of Sale and related flag deletion certificate will be for the Seller's account.
5. The original manufacturer's statement of origin or title or original Registration (s) for any tenders, auxiliary vessel(s), or personal watercraft fully assigned to Buyer.
6. Original affidavits of non-registration/title for tenders, auxiliary Vessel (s), or personal watercraft that have not been registered and have not been titled.

7. Three (3) original United States Coast Guard Bill of Sale or equivalent for any tenders, auxiliary vessel(s), or personal watercraft notarized (and if notarized outside of the United States – apostilled with the apostille translated into English by a certified translator).
8. The original current valid certificates issued by the Vessel's Classification Society, and any other original certificates of the Vessel as issued by the Vessel's flag state, in addition to any other original certificates of the Vessel that are in the possession, custody or control of the Seller (including all SOLAS Certificates and safety Certificates), (originals to be turned over on board the Vessel if an offshore closing), such certificates shall also include, but not limited to **(If applicable)**;
 - a) Certificate of Survey
 - b) Original Classification Certificate.
 - c) Original International Tonnage Certificate (and if issued, original Panama Canal and Suez Canal Tonnage Certificates).
 - d) Original IOPP Certificate and applicable supplement and SOPEP (Ship Oil Pollution Emergency Plan), as well as NTVRP (Non-Tank Vessel Response Plan).
 - e) Original ISPP Certificate.
 - f) Original IAPP Certificate and applicable supplement.
 - g) Original EIAPP Certificates and Technical Files for each engine (including generator engines) with output power of 130kW or greater to the extent that said certificates and technical files are legally required.
 - h) Certificate of Conformity issued by the EPA (Environmental Protection Agency) for each engine (including generator engines) regardless of output power, verifying the engine's compliance with the EPA emissions rules and regulations, where applicable, as well as a clear photo of each engine's EPA emissions label(s) verifying the engine's compliance with the EPA emissions requirements for use in the United States, to the extent such EPA emissions labels are legally required;
 - i) Original IEE Certificate (if applicable) and applicable supplement, as well as the Vessel's SEEMP (Ship Energy Efficiency Management Plan);
 - j) Original International Anti-Fouling Systems Certificate and attached Record of Anti-Fouling Systems demonstrating compliance with Anti-Fouling Systems Convention.
 - k) Original Load Line Certificate and record of Load Lines.
 - l) Original Stability Book (both intact and damage stability) stamped approved by the Vessel's classification society.
 - m) Original Certificate of Compliance with the Vessel's flag state's Large Yacht Code and supplement.

- a. Vessels, the keels of which were laid or were at a similar stage of construction before 01 July 2024 and which have not previously been certificated in accordance with LY1, LY2, LY3, or the 2019 Edition of Part A, shall comply with this edition of the Code.
- n) Original Cargo Ship Safety Radio Certificate and applicable supplement.
- o) Original Cargo Ship Safety Construction Certificate.
- p) Original Cargo Ship Safety Equipment Certificate and applicable supplement.
- q) Confirmation of LRIT compliance.
- r) Confirmation of AIS compliance.
- s) Radio License.
- t) Original ISPS, ISM, and Ship Security Certificates.
- u) Continuous Synopsis Record.
- v) Original Maritime Labour Certificate and DMLC Parts I and II.
- w) Copy of the Vessel's Minimum Safe Manning Certificate.
- x) International Ballast Water Management Certificate (if the Vessel has Ballast Water Tanks).
- y) IMO EIAPP certificate and technical file for each qualifying engine, evidencing compliance with applicable IMO tiered emissions requirements.
- z) EPA Certificates of Conformity and photos of an emissions label affixed to each of the Yacht's engines and generators confirming compliance with applicable EPA-tiered emissions requirements.
- aa) If the Yacht does not have IMO Tier III NOx engines and if the Yacht's keel was laid on January 1, 2021, or later, a letter from the builder or engine manufacturer in conformity with CG-CVC Policy Letter 21-01.
- bb) If the Yacht's keel was laid after a Letter from the builder or engine manufacturer confirming that IMO Tier II
- cc) Classification Certificate and Confirmation of Class Certificate, issued no more than five (5) business days before Closing (each must be free from any condition or restriction and evidence completion of all required surveys).
- dd) Original Official Logbook
- ee) Original Oil Record Book.
- ff) Statement of Compliance to MCA REG LY Code Part A.

- gg) International Tonnage Certificate for Flag State
- hh) Crew accommodation plan approved by the Flag
- ii) Compass Deviation Cards.
- jj) Approved SOPEP (Shipboard Oil Pollution Emergency Plan)
- kk) Statement of Compliance to the MCA REG LY Code Part A
- ll) "As built" general Plans, drawings of the hydraulic and electric systems
- mm) List of all manufacturers and suppliers that have supplied goods, equipment, and machinery
- nn) All documents required by flag and class for the Vessel's crane/davit, if applicable.

The originals of the documents listed above shall be delivered to the Buyer onboard the Vessel at the time of completion of the sale. They must be valid and up to date, with all surveys current and without notations, recommendations, requirements, deficiencies, conditions, and restrictions of service of any nature whatsoever.

9. An original confirmation of class certificate, issued by the Classification Society stating that the Vessel is classed free from all notations, recommendations, requirements, deficiencies, conditions, and restrictions of service whatsoever, dated no earlier than seven (7) calendar days prior to the date of Closing.
10. An original assignment of any current warranties for the Vessel (including for any Auxiliary Vessels (if any)), and the Vessel's equipment, systems, components, and materials, including, without limitation, an assignment of the engine warranty and all applicable software licenses, and copies of all assignable warranties (to include engine manufacturer, navigation and communication equipment, suppliers, entertainment equipment, etc.).
11. List of all crew members on the Yacht or employed by the Current Owner as of Closing, and original crew releases signed by each of them confirming that they have been paid in full, including any accrued paid leave, as of Closing, and have no claim against the Yacht or the Current Owner; Buyers counsel to prepare Crew Releases signed by all the crew members onboard or in the employ of the Seller at the date of Closing, stating that the individual crew member has no claim against the Vessel, the Seller or any other individual or company associated with the Vessel (if applicable).
12. Current payoff letter from any Vessel lien holder, including wire transfer instructions, along with original instructions from Seller to such lien holder to send the original satisfaction of lien as directed to the Buyer (if applicable).
13. Original Satisfaction of Mortgage and/or other lien(s) (if applicable).

14. Original UCC 3 Termination Statements (stamped filed) for each UCC 1 Financing Statement filed against the Seller terminating each UCC 1 Financing Statement or amending the collateral encumbered by the UCC 1 Financing Statement to remove the Vessel as collateral (if applicable).
15. Original Letter from the Vessel's captain confirming, to the best of the captain's knowledge, that all bills, fees, taxes, charges, and claims relating to the Vessel and its usage have been paid or discharged, and that all work performed on the Vessel has been paid in full.
16. Letter of No Objection from the Registered Agent
17. Letter confirming that no fees are owed to the applicable shipping registry
18. If the Seller is a corporate entity, including, but not limited to, a trust, partnership, joint venture, limited liability company, corporation, or other business entity, the following documents are required:
 - a) A certified copy of the Certificate of Incorporation / Formation / Partnership / Trust, or equivalent of the Seller and any Certificates of Change of Name pertaining to the Seller;
 - b) A certified copy of the Memorandum and Articles of Association and/or Incorporation and/or Formation of the Seller or equivalent documents and any amendments thereto.
 - c) A certified copy of the entity's Operating Agreement, Partnership Agreement, By-laws, Trust Agreement, or other equivalent documents and any amendments thereto.
 - d) A certified copy of the Corporate Resolution of the Board of Directors of the Seller and the Shareholders of the Seller, or equivalent, to confirm Seller's ownership of the Vessel, its Agreement to sell the Vessel to the Buyer (or the Buyer's assigns) in accordance with the Agreement and thereafter delete the Vessel from its current registry, if applicable, its appointment of any person authorized to act on behalf of the Seller and Seller's authorization to receive sale proceeds;
 - e) The original and up-to-date Certificate of Good Standing of the Seller dated no earlier than seven (7) calendar days prior to the date of Closing.
 - f) The original Power of Attorney from the Seller for any person acting under a Power of Attorney that signs any document required to close on behalf of the Seller, notarized (and if notarized outside of the United States, apostilled with the apostille translated into English by a certified translator);
 - g) An original Certificate of Incumbency (indicating current directors, officers, and shareholders (or equivalent) of Seller); and
 - h) Certified copies of the corporate registers, including the Share Register, Register of Directors and Officers, and the Register of Mortgages and Charges (or equivalent).

In the event the shareholder(s), or equivalent, of the Selling Entity is/are also a business entity including but not limited to corporation, limited liability company, partnership, trust, joint venture, or other business entity, the documents note in a-h will also be required for the shareholding, or equivalent, entity/entities.

19. Original Warranty of Title in a form acceptable to the Buyer, signed, dated, and notarized by the Seller's duly authorized officers or directors, that includes the Vessel's ultimate Beneficial Owner(s) personal warranty, guarantee, and indemnity signed, dated, and notarized by the Beneficial Owner(s) of the Seller.
20. Original Declaration of Delivery and Acceptance of the Vessel, to include a Vessel position report at the time and date of delivery (if applicable).
21. Original Protocol of Delivery and Acceptance of the Vessel, signed by the Seller and the Buyer or their duly authorized representatives.
22. Copy of Seller's signed and dated Closing Statement, signed by the Seller and all brokers to be paid by the Seller.
23. Original Seller's Payment Instructions and Authority detailing the parties authorized by the Seller to receive sales proceeds, including the amounts and wire transfer details for each recipient, signed by the Seller.
24. A copy of the Builder's Certificate for the Vessel.
25. A copy of the Manufacturer's Statement of Origin for the Vessel.
26. A copy of the CE Certificate for the Vessel.
27. Copies of all third-party agreements regarding the Vessel and/or its ownership, operation, and management.
28. A copy of the Seller's current insurance policy on the Vessel.
29. A copy of the current Certificate of Financial Responsibility (CoFR).
30. Copy of the Vessel's U.S. Customs entry showing that duty has been paid upon the Vessel (if applicable).
31. Affidavit of Non-Export from the Seller (if applicable).
32. All plans, specifications, logbooks, including copies of navigational logbooks, blueprints, warranties, guarantees, instruction manuals, handbooks, and other technical documentation of the Vessel that are in the possession, custody, or control of the Seller (originals to be turned over on board the Vessel).
33. Any other document as reasonably required by the Buyer to register the transfer of title to the Vessel under the Buyer's chosen flag state; provided, however, that the Buyer shall notify the Seller of such requirements as soon as practicable.

34. All documents noted herein shall be provided in the English language and shall be translated by a certified translator where required.
35. Original Seller's Payment Instructions and Authority detailing the parties authorized by the Seller to receive sales proceeds, including the amounts and wire transfer details for each recipient, signed by the Seller.
36. Copies of all third-party agreements regarding the Vessel and/or its ownership, operation, and management.
37. All plans, specifications, logbooks, including copies of navigational logbooks, blueprints, warranties, guarantees, instruction manuals, handbooks, and other technical documentation of the Vessel that are in the possession, custody, or control of the Seller (originals to be turned over on board the Vessel).
38. Any other document as reasonably required by the Buyer to register the transfer of title to the Vessel under the Buyer's chosen flag state; provided, however, that the Buyer shall notify the Seller of such requirements as soon as practicable after the date of this Agreement.
39. All documents noted herein shall be provided in the English language and shall be translated by a certified translator where required.